

PORTUGAL — Business Formation Guide

RKPT TECH LTD | EU Business & Company Formation Hub *Verified against official government sources — September 2026*

1. Snapshot

Recommended structure	Sociedade Unipessoal por Quotas (1 shareholder) / Sociedade por Quotas — Lda (2+)
Authority	IRN / Empresa Online 2.0 (justica.gov.pt)
Government incorporation fee	€220 (pre-approved articles) to €360 (custom articles / Empresa na Hora)
Minimum capital	From €1 for a Unipessoal Lda quota, subject to structure
Typical incorporation time	Same day (in person) to ~10 working days (online, custom articles)

2. Recommended Structure

- **Sociedade Unipessoal por Quotas (Unipessoal Lda)** — single shareholder; liability generally limited to the company's capital contribution; quota can be set from €1.
 - **Sociedade por Quotas (Lda)** — two or more shareholders.
 - **Sociedade Anónima (S.A.)** — larger companies, typically higher capital and shareholder requirements.
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3. Company Formation — Step by Step

1. **Determine business activity and CAE code** (Portuguese activity classification) — this drives tax, licensing and regulatory treatment

2. **Choose the legal structure**
 3. **Choose company name** — either a pre-approved name from the official list, or apply for a **Certificado de Admissibilidade** for a custom name
 4. **Prepare shareholder/director documentation** — passport/ID, Portuguese **NIF** (tax number), address, shareholding percentages
 5. **Prepare the articles of association (Pacto Social)** — name, registered office, purpose, capital, shareholders, management
 6. **Incorporate** through one of:
 - **Empresa na Hora** (in-person, same-day)
 - **Empresa Online** (digital, pre-approved or custom articles)
 - Traditional notary/lawyer route
 7. **Deposit share capital** — generally within 5 working days of incorporation for the standard route
 8. **Submit the Declaração de Início de Atividade** (tax activity commencement) — within 15 days of commercial registration, and always before trading begins
 9. **Appoint a Contabilista Certificado** (certified accountant) where organised accounting applies
 10. **Complete RCBE beneficial-ownership registration**
 11. **Register with Social Security** if hiring employees
 12. **Open a business bank account**
 13. **Complete VAT and any activity-specific licensing**
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4. Documents & Information Required

- Passport / ID for all shareholders and directors
- Portuguese **NIF** (tax identification number) for every shareholder and director
- Proof of address
- Company name (or Certificado de Admissibilidade for a custom name)
- CAE activity code

- Articles of association / Pacto Social
- Beneficial-owner (RCBE) information
- Power of attorney, if incorporating by representation
- Foreign documents may require apostille/legalisation and certified translation

5. Costs (Government fees — separated from other costs)

Route	Government fee
Empresa Online — pre-approved articles	€220
Empresa Online — custom articles	€360
Empresa na Hora (in person)	€360
Traditional notary/lawyer incorporation	€650–€1,025 (variable, complexity-dependent)
Certificado de Admissibilidade (custom name)	€75 standard / €150 urgent
Trademark registration (1 class)	+€100 (each extra class +€44)

Share capital: From €1 for a Unipessoal Lda quota, subject to legal requirements — this is company capital, not a government fee.

Indicative overall setup budget: approximately **€500–€1,500+**, excluding share capital and ongoing accounting — covers registered office, accountant, notary/translation, banking support and licensing where applicable.

6. Timeframe

Stage	Indicative time
Documentation preparation	1–5 working days
Empresa na Hora	Potentially same day (in person)
Empresa Online — pre-approved	~1–5 working days

articles	
Empresa Online — custom articles	~10 working days
Tax activity registration	Coordinated around incorporation; due within 15 days
RCBE declaration	Within 30 days of registration
Banking	1–4+ weeks
Full operational setup	1–4+ weeks

7. Tax & Ongoing Compliance

Item	Rate
Corporate Tax (IRC) — standard	19% (2026), declining to 18% (2027), 17% (2028)
Corporate Tax — SME rate	15% on the first €50,000 of taxable income
Solidarity tax on high profits	2.5%–5%
VAT (IVA) — standard rate	23%
Personal Income Tax (IRS)	Progressive 12.5%–48%, plus solidarity surcharge on income over €80,000/€250,000
Minimum wage	€920/month (€12,880/year) from January 2026

Ongoing obligations: accounting, IRC and VAT returns, Social Security (if employing), annual accounts, RCBE annual confirmation (by 31 December), activity-specific licences.

8. Important Information

- **RCBE beneficial-ownership registration is mandatory** for all entities established in Portugal — the initial declaration is generally due within 30 days of incorporation

registration, with an annual confirmation required thereafter.

- Where organised accounting applies, a **certified accountant (Contabilista Certificado)** is legally required — this can be appointed during the online incorporation process itself.
- **Immigration is separate from incorporation.** The **D2 Visa** (entrepreneur/self-employment route) requires a viable business plan and evidence of financial means (indicatively ~€11,040, linked to 12× the 2026 minimum wage). It leads to a residence permit, with permanent residence/citizenship generally possible after 5 years. Incorporating a company does not itself create immigration rights.
- Bank approval is a separate process from incorporation — banks conduct their own KYC assessment and may request a business plan, source-of-funds information and expected transaction volumes.

Disclaimer: Fees, thresholds and requirements change and should be reconfirmed at justica.gov.pt or portaldasfinancas.gov.pt before reliance. This is general information, not legal, tax or immigration advice.

9. Official Sources (checked September 2026)

- Instituto dos Registos e do Notariado (IRN) — <https://irn.justica.gov.pt>
- Empresa Online 2.0 — <https://eportugal.gov.pt>
- Portal da Justiça — <https://justica.gov.pt>
- Autoridade Tributária e Aduaneira (tax authority — NIF, IRC, IRS, VAT) — <https://www.portaldasfinancas.gov.pt>
- Segurança Social — <https://www.seg-social.pt>
- AIMA (immigration) — <https://aima.gov.pt>